

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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ANDRES FERMIN,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER KEVIN
BEASLEY, Tax No. 961634, SERGEANT BRIAN
CLEMENTS, Tax No. 929108, SERGEANT SALINAS,
Tax No. 940693, and POLICE OFFICERS JOHN DOES
#1-10 (names and number of whom are unknown at
present),

Defendants.

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SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Bronx
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the verified complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
May 14, 2018

Yours, etc.

/s/

JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
POLICE OFFICER KEVIN BEASLEY, Tax No. 961634, Strategic Response Group,
One Police Plaza, New York, NY, 10038

SERGEANT BRIAN CLEMENTS, Tax No. 929108, Strategic Response Group, One
Police Plaza, New York, NY, 10038

SERGEANT SALINAS, Tax No. 940693, 44th Precinct, 2 E 169th St, Bronx, NY 10452

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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ANDRES FERMIN,

Plaintiff,

INDEX NO.:

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, POLICE OFFICER KEVIN
BEASLEY, Tax No. 961634, SERGEANT BRIAN
CLEMENTS, Tax No. 929108, and POLICE OFFICERS
JOHN DOES #1-10 (names and number of whom are
unknown at present),

JURY TRIAL DEMANDED

Defendants.

----- X

Plaintiff ANDRES FERMIN, by his attorneys, Jacobs & Hazan, LLP, as and for his
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On November 9, 2016, at approximately 5:30 a.m., plaintiff Andres Fermin was lawfully present inside of 1380 Ogden Avenue, Apartment 1C, Bronx, NY, when the defendant police officers unlawfully entered the apartment and searched plaintiff's person and the entire apartment without any legal justification. The defendants unlawfully seized, unlawfully handcuffed, falsely imprisoned and falsely arrested plaintiff without probable cause or legal justification to believe plaintiff committed a crime or violated the law in any manner. Thereafter, the defendants denied plaintiff the right to due process and a fair trial and maliciously prosecuted plaintiff until all charges against plaintiff were dismissed in their entirety on February 21, 2017. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully searched, confined, arrested, imprisoned, denied him rights to a fair trial, and maliciously prosecuted plaintiff in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.

PARTIES

2. Plaintiff ANDRES FERMIN is and was at all times relevant herein a resident of the State of New York.

3. POLICE OFFICER KEVIN BEASLEY, Tax No. 961634, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. POLICE OFFICER KEVIN BEASLEY, Tax No. 961634, is and was at all times relevant herein, assigned to the Strategic Response Group.

5. POLICE OFFICER KEVIN BEASLEY, Tax No. 961634, is being sued in his individual and official capacity.

6. SERGEANT BRIAN CLEMENTS, Tax No. 929108, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. SERGEANT BRIAN CLEMENTS, Tax No. 929108, was at all times relevant herein, assigned to the Strategic Response Group.

8. SERGEANT BRIAN CLEMENTS, Tax No. 929108, is being sued in his individual and official capacity.

9. SERGEANT SALINAS, Tax No. 940693, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. SERGEANT SALINAS, Tax No. 940693, was at all times relevant herein, assigned to the 44th Precinct.

11. SERGEANT SALINAS, Tax No. 940693, is being sued in his individual and official capacity.

12. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

13. Police Officers John Does #1-10 are being sued in his individual and official capacities.

14. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in he as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

15. At all times relevant hereto, defendant CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Police Department (“NYPD”) as part of and in conjunction with its municipal function.

16. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

17. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK, in compliance with the Municipal Law Section 50.

18. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.

19. The CITY OF NEW YORK conducted a hearing pursuant to 50-h of the general municipal law on or about July 12, 2017.

20. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

21. Plaintiff sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

22. On November 9, 2016, at approximately 5:30 a.m., plaintiff was lawfully present inside of his apartment located at 1380 Ogden Avenue, Apartment 1C, Bronx, New York, when the defendant police officers unlawfully entered the apartment and unlawfully searched the apartment and the individuals present without probable cause or any legal justification.

23. At no time relevant herein did defendants recover any illegal drugs, weapons, or contraband from plaintiff's person, or from a location that was in plaintiff's possession, custody, or control.

24. At no time relevant herein did plaintiff commit a crime or violate the law in any manner, nor did the defendant officers have probable cause to believe he committed a crime or violated the law.

25. Nevertheless, plaintiff was unlawfully handcuffed and transported against his will to the 44th Precinct where he was searched, photographed, fingerprinted, and detained in a filthy holding cell for many hours.

26. On November 9, 2016 at approximately 10:00 a.m., plaintiff was transported from the 44th Precinct to Bronx Central Booking and placed in a holding cell.

27. The defendant police officers intentionally provided the Bronx County District Attorney's Office with false, misleading and incomplete information regarding their basis for arresting and prosecuting plaintiff and falsely charged plaintiff with crimes he did not commit.

28. Based upon the false, misleading and/or incomplete information provided to the District Attorney's Office by the defendant police officers, a prosecution was initiated against plaintiff.

29. On November 9, 2016 at approximately 11:30 p.m., after approximately 18 hours in unlawful custody, plaintiff was arraigned in Bronx Criminal Court and charged with crimes he did not commit and for which the defendant police officers had no objective basis to accuse him of committing.

30. Plaintiff was unlawfully charged with Criminal Possession of a Controlled Substance in the Third Degree, Criminal Possession of a Controlled Substance in the Fourth Degree, Criminal Possession of a Controlled Substance in the Fifth Degree, Criminal Possession of a Weapon in the Third Degree, and Criminal Possession of a Controlled Substance in the Seventh Degree.

31. The judge set bail, which plaintiff was unable to post, and plaintiff was remanded to custody of the Department of Correction at the Vernon C. Bain Center.

32. On November 18, 2016 after approximately 9 days in custody, plaintiff was able to post bail and was released from custody.

33. On December 9, 2016, based on the false, misleading, and/or incomplete information provided by the defendant police officers, the grand jury indicted plaintiff for crimes he did not commit.

34. The presumption of probable cause created by the Grand Jury indictment is rebuttable in this case because the indictment was based upon false statements told to the grand jury and/or false information documented in reports and paperwork by the defendant police officers.

35. Specifically, the defendant police officers falsely stated in the grand jury that plaintiff was in possession, custody, and control of weapons and drugs that they allegedly recovered in the apartment despite knowing that plaintiff was not in possession, custody, or control of any guns, drugs, or contraband.

36. Plaintiff was forced to appear in court on approximately 7 occasions until February 21, 2017 when all charges against plaintiff were dismissed in their entirety.

37. As a result of the false arrest of plaintiff by the defendant police officers, plaintiff was evicted from his apartment on January 9, 2017.

38. During the unlawful search of plaintiff's apartment and false arrest of plaintiff by the defendant police officers, a laptop valued at \$600 and music equipment valued at \$1000 were stolen from plaintiff's apartment by the defendant police officers.

39. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable search, seizure, false arrest, denial of the right to due process/ fair trial and malicious prosecution of plaintiff.

40. The unlawful search, false arrest/ imprisonment, unlawful strip search, denial of a right to fair trial, and malicious prosecution of plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment, Fifth Amendment and Fourteenth Amendment Rights

41. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 40 with the same force and effect as if more fully set forth at length herein.

42. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully seized, unlawfully searched, unlawfully strip-searched, falsely arrested, falsely imprisoned, denied of his right to fair trial and maliciously prosecuted without probable cause in violation of plaintiff's right to be free of unreasonable seizure under the Fourth Amendment to the Constitution of the United States, denial of his right to due process under the Fifth Amendment to the Constitution of the United States and to be free of deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

43. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

44. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 43 with the same force and effect as if more fully set forth at length herein.

45. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

46. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

47. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

THIRD CAUSE OF ACTION

Unlawful Search

48. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 47 with the same force and effect as if more fully set forth at length herein.

49. The illegal approach, pursuit, stop and search employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

50. Defendants lacked probable cause to search plaintiff.

51. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

52. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

FOURTH CAUSE OF ACTION

Malicious Prosecution

53. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 52 with the same force and effect as if more fully set forth at length herein.

54. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York and New York State common law.

55. Defendants commenced and continued a criminal proceeding against plaintiff.

56. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which they were prosecuted.

57. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned dates.

58. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

59. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

60. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

61. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

62. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 61 with the same force and effect as if more fully set forth at length herein.

63. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, Andres Fermin. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

64. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.

65. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

SIXTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

66. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 65 with the same force and effect as if more fully set forth at length herein.

67. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

SEVENTH CAUSE OF ACTION

Denial of Right to Fair Trial/Due Process

68. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 67 with the same force and effect as if more fully set forth at length herein.

69. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Bronx County District Attorney's Office.

70. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Bronx County District Attorney's Office.

71. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Bronx County District Attorney's Office.

72. In withholding/creating false evidence against plaintiff Andres Fermin, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

73. As a result of the foregoing, plaintiff Andres Fermin, sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

74. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

75. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

76. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION

Failure to Intervene

77. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 76 with the same force and effect as if more fully set forth at length herein.

78. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

79. Defendants failed to intervene to prevent the unlawful conduct described herein.

80. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of her safety, and she was humiliated and subject to other physical constraints.

81. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

JURY DEMAND

82. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Andres Fermin demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorneys fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
May 14, 2018

By: /s/
STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
POLICE OFFICER KEVIN BEASLEY, Tax No. 961634, Strategic Response Group,
One Police Plaza, New York, NY, 10038
SERGEANT BRIAN CLEMENTS, Tax No. 929108, Strategic Response Group, One
Police Plaza, New York, NY, 10038
SERGEANT SALINAS, Tax No. 940693, 44th Precinct, 2 E 169th St, Bronx, NY 10452

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe he to be true. The reason this verification is made by me and not Plaintiff is that Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
May 14, 2018

/s/
STUART E. JACOBS